

ClearPath Legal + Disclaimers

Document: 10 of 10 Phase: Phase 3 Status: Complete Generated: 2026-04-04

Overview

This document defines the legal framework protecting both ClearPath products:

PRODUCT	KEY RISK	PROTECTION NEEDED
ClearPath Analyzer	Users treat estimates as financial advice and lose money	Disclaimer: estimates only, not investment advice
ClearPath Asset Group	Scope disputes, budget overruns, tenant issues	Service agreement with clear terms

⚠ Important: This document provides templates and frameworks. Have a licensed Illinois attorney review all legal documents before publishing or signing anything.

1. Analyzer Disclaimer (Website)

This must appear on every results page and in the site footer.

Short Version (Results Page — Above the Fold)

⚠ Disclaimer: All estimates provided by ClearPath Analyzer are for educational and informational purposes only. These are not appraisals, financial advice, or guarantees of performance. Always conduct your own due diligence and consult a licensed professional before making investment decisions.

Long Version (Dedicated Disclaimer Page — `/disclaimer`)

CLEARPATH ANALYZER DISCLAIMER

Last Updated: [Date]

The ClearPath Analyzer ("the Tool") provides estimated property values, rehab costs, rental income, cash flow projections, and profit calculations based on publicly available data, third-party APIs, and generalized assumptions.

1. NOT FINANCIAL ADVICE

The Tool does not constitute financial, investment, tax, or legal advice. ClearPath is not a licensed real estate broker, appraiser, financial advisor, or investment advisor. All outputs are estimates and should not be the sole basis for any investment decision.

2. ACCURACY NOT GUARANTEED

Estimates are generated using automated calculations and third-party data sources (including but not limited to Zillow, public records, and comparable sales data). ClearPath does not guarantee the accuracy, completeness, or timeliness of any data or calculation. Actual values may differ significantly from estimates provided.

3. NO APPRAISAL

ARV (After Repair Value) estimates are NOT certified appraisals. They are algorithmic estimates based on available comparable sales data. A licensed appraiser should be consulted for any formal property valuation.

4. REHAB ESTIMATES ARE APPROXIMATE

Rehab cost estimates are based on general per-square-foot assumptions and do not account for property-specific conditions that can only be determined through a physical inspection. Actual rehab costs may be higher or lower than estimated.

5. MARKET CONDITIONS CHANGE

Real estate markets fluctuate. Rent estimates, property values, and cash flow projections are based on data available at the time of analysis and may not reflect future market conditions.

6. USER RESPONSIBILITY

By using the Tool, you acknowledge that:

- You are solely responsible for your investment decisions
- You will conduct independent due diligence
- You will consult licensed professionals (appraiser, inspector, attorney, CPA) before acting on any data from the Tool
- ClearPath is not liable for any financial losses resulting from reliance on Tool outputs

7. LIMITATION OF LIABILITY

In no event shall ClearPath, its owners, employees, or affiliates be liable for any direct, indirect, incidental, consequential, or punitive damages arising from the use of the Tool or reliance on its outputs.

2. Terms of Use (Website — [/terms](#))

CLEARPATH TERMS OF USE

Last Updated: [Date]

By accessing or using the ClearPath website and tools ("the Service"), you agree to the following terms.

1. ACCEPTANCE OF TERMS

By using the Service, you agree to be bound by these Terms of Use. If you do not agree, do not use the Service.

2. DESCRIPTION OF SERVICE

ClearPath provides:

- a) A free online real estate deal analysis tool (the "Analyzer")
- b) A property rehabilitation and management service operating in Cook County, Illinois (the "Asset Group")

3. USER ACCOUNTS

- You may be required to provide an email address to access certain features
- You are responsible for maintaining the confidentiality of your account
- You agree to provide accurate, current information

4. ACCEPTABLE USE

You agree NOT to:

- Use the Service for any unlawful purpose
- Attempt to reverse-engineer the calculation algorithms
- Scrape, crawl, or automate access to the Service
- Submit false information to manipulate outputs
- Use the Service to harass, spam, or mislead others
- Resell or redistribute data obtained from the Service

5. INTELLECTUAL PROPERTY

All content, designs, code, and algorithms are the property of ClearPath. You may not copy, modify, or distribute any part of the Service without written consent.

6. DATA AND PRIVACY

Your use of the Service is also governed by our Privacy Policy.

By using the Service, you consent to the collection and use of data as described therein.

7. THIRD-PARTY DATA

The Service relies on third-party data providers (Zillow, Google Maps, public records). ClearPath does not control or guarantee the accuracy of third-party data.

8. DISCLAIMER OF WARRANTIES

The Service is provided "AS IS" and "AS AVAILABLE" without warranties of any kind, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or non-infringement.

9. LIMITATION OF LIABILITY

ClearPath shall not be liable for any damages arising from:

- Use or inability to use the Service

- Errors or omissions in calculations
- Unauthorized access to your data
- Any third-party actions or data

10. INDEMNIFICATION

You agree to indemnify and hold harmless ClearPath and its owners, employees, and affiliates from any claims arising from your use of the Service.

11. MODIFICATION OF TERMS

ClearPath reserves the right to modify these Terms at any time. Continued use of the Service constitutes acceptance of modified Terms.

12. GOVERNING LAW

These Terms shall be governed by the laws of the State of Illinois. Any disputes shall be resolved in the courts of Cook County, Illinois.

13. CONTACT

Questions about these Terms may be directed to:
[legal@clearpath.com]

3. Privacy Policy (Website — </privacy>)

CLEARPATH PRIVACY POLICY

Last Updated: [Date]

ClearPath ("we", "us", "our") respects your privacy. This policy explains what data we collect, how we use it, and your rights.

1. INFORMATION WE COLLECT

a) Information You Provide:

- Email address (required for full analysis results)
- Name (optional)
- Phone number (optional, for Asset Group inquiries)
- Property addresses you analyze

b) Information Collected Automatically:

- IP address
- Browser type and version
- Device type
- Pages visited and time spent
- Referring URL and UTM parameters
- Cookies and similar tracking technologies

c) Information from Third Parties:

- Property data from Zillow and public records APIs
- Address data from Google Maps

2. HOW WE USE YOUR INFORMATION

We use your information to:

- Provide deal analysis results
- Send transactional emails (analysis confirmation)
- Send marketing emails (with your consent)
- Contact you about ClearPath Asset Group services (Cook County leads only)
- Improve the accuracy and functionality of the Analyzer
- Track content attribution (UTM parameters)
- Comply with legal obligations

3. DATA SHARING

We do NOT sell your personal information.

We may share data with:

- Service providers (Supabase, Resend, Twilio, Vercel) solely to operate the Service
- Legal authorities if required by law

4. DATA RETENTION

- Analysis data: Retained indefinitely (anonymized after 24 months if no account)
- Lead data: Retained until you request deletion
- Activity logs: Retained for 12 months

5. YOUR RIGHTS

You have the right to:

- Access your personal data
- Request correction of inaccurate data
- Request deletion of your data
- Opt out of marketing emails (every email has an unsubscribe link)
- Opt out of SMS messages (reply STOP)

To exercise these rights, email: [privacy@clearpath.com]

6. COOKIES

We use cookies for:

- Analytics (Plausible – privacy-friendly, no personal tracking)
- Session management
- UTM parameter tracking

You can disable cookies in your browser settings.

7. SECURITY

We implement reasonable security measures including:

- Encrypted data transmission (HTTPS/TLS)
- Supabase Row Level Security (RLS)
- Server-side API key storage
- Rate limiting on API endpoints

8. CHILDREN'S PRIVACY

The Service is not intended for individuals under 18.
We do not knowingly collect data from minors.

9. CHANGES TO THIS POLICY

We may update this Privacy Policy periodically. Changes will be posted on this page with an updated "Last Updated" date.

10. CONTACT

For privacy inquiries:
Email: [privacy@clearpath.com]

4. Asset Group Service Agreement (Template)

This is signed between ClearPath Asset Group and the client before any project work begins.

CLEARPATH ASSET GROUP SERVICE AGREEMENT

Date: _____

Client Name: _____

Client Email: _____

Client Phone: _____

Property Address: _____

City: _____ County: Cook State: IL Zip: _____

1. SCOPE OF SERVICES

ClearPath Asset Group ("ClearPath") agrees to provide the following services for the above property:

- ☐ Rehab Management
- ☐ Lease-Up
- ☐ Stabilization & Handoff

The specific scope of work is detailed in the attached Scope of Work (SOW) document, which is incorporated by reference into this Agreement.

2. PROJECT BUDGET

Total estimated budget: \$_____

Contingency allowance (10%): \$_____

Total with contingency: \$_____

The budget includes ClearPath's management fee. There are no additional management fees beyond the stated budget.

3. PAYMENT SCHEDULE

☐ Standard 4-Draw Schedule:

Draw 1 (Agreement Signed): 25% = \$ _____
 Draw 2 (Rough-In Complete): 25% = \$ _____
 Draw 3 (75% Completion): 25% = \$ _____
 Draw 4 (Final Walk Complete): 25% = \$ _____

☐ Custom Schedule (see attached)

4. CHANGE ORDERS

Any changes to the approved SOW that exceed \$500 require:

- Written description of the change
- Cost impact
- Client written approval (email is acceptable)

Work on change order items will NOT begin until approval is received.

5. TIMELINE

Estimated start date: _____

Estimated completion date: _____

ClearPath will make reasonable efforts to meet the estimated timeline. Delays caused by weather, permit issues, material shortages, or client-requested changes may extend the timeline.

6. CLIENT RESPONSIBILITIES

The client agrees to:

- Provide timely responses to approval requests (within 48 hrs)
- Fund draw payments within 5 business days of milestone
- Not hire separate contractors to work on the property during ClearPath's active engagement without written consent
- Maintain property insurance during the project
- Provide property access as needed

7. CLEARPATH RESPONSIBILITIES

ClearPath agrees to:

- Execute the SOW as approved
- Provide weekly photo and progress updates
- Obtain all necessary permits
- Schedule and manage all inspections
- Notify the client immediately of any material issues
- Complete a punch list walk-through before requesting final payment

8. LEASE-UP SERVICES (If Applicable)

If lease-up is included:

- ClearPath will list the property within 3 business days of rehab completion
- Tenant screening follows the criteria in the ClearPath SOP
- All screening complies with Fair Housing Act and Cook County Human Rights Ordinance

- Client approves final tenant selection
- Lease is executed in the client's name

9. STABILIZATION HANDOFF

Upon lease signing, ClearPath will deliver:

- Final rehab report (budget vs. actuals)
- Executed lease copy
- Tenant profile and documentation
- Move-in inspection with photos
- Warranty information
- Contractor contact list
- Cash flow projection (updated with actual rent)

10. WARRANTY

ClearPath warrants workmanship for 90 days after project completion. This covers defects in work performed by ClearPath's contractors. It does NOT cover:

- Normal wear and tear
- Tenant damage
- Pre-existing conditions not in the SOW
- Systems not included in the SOW (e.g., sewer laterals if not scoped)

11. LIMITATION OF LIABILITY

ClearPath's total liability shall not exceed the total amount paid by the client under this Agreement. ClearPath is not liable for:

- Market fluctuations affecting property value
- Tenant non-payment or lease violations
- Losses due to client's independent decisions
- Force majeure events

12. TERMINATION

Either party may terminate this Agreement with 14 days written notice.

If the client terminates:

- Client pays for all work completed to date
- Client pays for materials purchased and non-refundable commitments
- No refund of management fee on completed work

If ClearPath terminates:

- ClearPath refunds unused draw payments
- ClearPath provides documentation of all work completed

13. DISPUTE RESOLUTION

Any disputes shall be resolved through:

1. Good faith negotiation (14 days)
2. Mediation in Cook County, IL (30 days)
3. Binding arbitration under Illinois law

14. GOVERNING LAW

This Agreement is governed by the laws of the State of Illinois. Venue for any proceedings shall be Cook County, IL.

15. ENTIRE AGREEMENT

This Agreement, together with the attached SOW and any change orders, constitutes the entire agreement between the parties.

CLIENT SIGNATURE

Print Name: _____
Signature: _____
Date: _____

CLEARPATH ASSET GROUP

Print Name: _____
Title: _____
Signature: _____
Date: _____

5. Email / SMS Compliance

CAN-SPAM (Email)

REQUIREMENT	IMPLEMENTATION
Identify as an ad	Marketing emails labeled appropriately
Include physical address	Footer of every email
Include unsubscribe link	Every email (Resend handles this)
Honor opt-outs within 10 days	Automated via Resend/MailerLite
No deceptive subject lines	Internal review before sending

TCPA (SMS)

REQUIREMENT	IMPLEMENTATION
Express written consent	Checkbox on Asset Group contact form: "I consent to receive text messages from ClearPath"
Opt-out mechanism	Reply STOP at any time

Identify sender	Every SMS includes "- ClearPath"
No messages before 8am or after 9pm	Twilio send windows configured
Record of consent	Stored in <code>leads.tags</code> array + <code>lead_activity</code> log

6. Fair Housing Compliance (Lease-Up)

ClearPath must comply with:

LAW	SCOPE
Federal Fair Housing Act	Cannot discriminate based on race, color, religion, sex, national origin, familial status, disability
Illinois Human Rights Act	Adds: ancestry, age, marital status, sexual orientation, military status
Cook County Human Rights Ordinance	Adds: source of income (Section 8 / housing vouchers must be accepted)

Internal Rules:

- Tenant screening criteria are objective and applied uniformly
- No steering, preferencing, or discouraging any protected class
- All listings include Equal Housing Opportunity logo
- Document every screening decision with reason codes

7. Business Entity Recommendation

STRUCTURE	RECOMMENDATION
ClearPath Analyzer (the tool)	LLC — shields personal assets from software liability
ClearPath Asset Group (the service)	Separate LLC — isolates rehab/service liability from the tech product

Recommended: Form two LLCs under one parent entity or keep them as two standalone LLCs. Consult an Illinois business attorney.

Registrations Needed:

- Illinois LLC formation (Secretary of State)

- EIN from IRS
- Cook County business license
- Illinois Department of Revenue (if collecting fees)
- General liability insurance (\$1M minimum recommended)
- Professional liability / E&O insurance (for the service)

Checklist: Legal Launch Requirements

ITEM	STATUS	NOTES
Analyzer Disclaimer (short) on results page	☐	Required before launch
Analyzer Disclaimer (long) on /disclaimer	☐	Required before launch
Terms of Use on /terms	☐	Required before launch
Privacy Policy on /privacy	☐	Required before launch
Cookie consent banner	☐	Required if using analytics cookies
CAN-SPAM compliance in all emails	☐	Physical address + unsubscribe
TCPA consent checkbox on forms	☐	Before sending any SMS
Service Agreement template finalized	☐	Before first Asset Group client
LLC formed (Analyzer)	☐	Before launch
LLC formed (Asset Group)	☐	Before first client
General liability insurance	☐	Before first project
Attorney review of all documents	☐	Non-negotiable

This is the final document in the ClearPath Build System. All 10 documents are now complete.